

No.	Clause	What should be added / changed for Better Pass
1	1.1 Legal Name	The Better Pass
2	1.2 Privacy Policy Link	https://thebetterpass.com/terms
3	1.4 Non-acceptance of updated Terms/Privacy Policy	If a customer or vendor does not agree to any updated Terms & Conditions or Privacy Policy, they may discontinue use of the applicable services. Continued use of the platform after the effective date of the updated terms shall constitute acceptance of the revised terms.
4	2.1(a) Vendor Add	2.1(a) Vendor/Partner: For the purposes of these Terms and Conditions, a “Vendor” or “Partner” means a service provider registered or listed on the Better Pass platform for providing tourism, travel, recreational, or experience-based services to Customers. Vendors/Partners shall include the following categories: 1. Tour Companies – businesses or organisations that provide organised tours, trips, excursions, sightseeing experiences, travel packages, or other tourism-related services. 2. Activity Instructors – individuals or organisations that provide instruction, supervision, training, or guided participation in tourism, recreational, adventure, sports, cultural, educational, or other activities offered through the Better Pass platform. 3. Local Guides – individuals who provide local guiding, sightseeing, cultural, historical, informational, or other destination-based guiding services to Customers. 2.1(b) Customer: For the purposes of these Terms and Conditions, a “Customer” means a tourist or visitor who uses the Better Pass platform, purchases or holds a Better Pass, accesses benefits offered through the Better Pass platform, or seeks to use or purchase services, activities, tours, or experiences offered by Vendors/Partners through the platform. Customers may be domestic or international tourists/visitors and may use the Better Pass platform for accessing tourism, travel, recreational, cultural, activity-based, or other eligible services and benefits available through Better Pass.
5	2.1(d) Customer Details	Clarify exactly what customer information is collected. Suggested categories: name, mobile number, email address, location/address where required, transaction details, Better Pass membership/pass details and information voluntarily provided by the customer. State the purpose for collecting each category and refer to the Privacy Policy for processing/storage details.

6	3.3 Verification Documents	For registration and verification purposes, Better Pass may collect and require Vendors/Partners to provide information and documents necessary to establish their identity, eligibility, and legitimacy. (a) Tour Companies and Activity Instructors: Tour Companies and Activity Instructors shall provide, as applicable, their name, email address, phone number, country, city, registration number, website, business or service overview, and primary verification ID. Better Pass may request additional information or verification documents where reasonably necessary to verify the identity, registration, eligibility, or legitimacy of the Vendor/Partner. (b) Local Guides: Local Guides shall provide, as applicable, their name, email address, phone number, country, city, languages spoken, licence number, years of experience (YOE), government-issued identification, and a summary/profile of the services or experiences offered. Better Pass may request additional information or verification documents where reasonably necessary to verify the identity, qualifications, eligibility, or legitimacy of the Local Guide. Vendors/Partners are responsible for ensuring that all information and documents submitted to Better Pass are accurate, complete, valid, and up to date. Better Pass reserves the right to conduct additional verification or request further information where required for compliance, safety, fraud prevention, or the proper operation of the Better Pass platform.
7	4.3 Refund Policy	All payments made through the Better Pass platform are subject to the applicable refund, payment, and transaction policies of Razorpay, where Razorpay is used as the payment gateway or payment service provider. In addition, refunds for bookings made through Better Pass shall be governed by the following cancellation and refund policy: (a) Cancellation 72 Hours or More Before the Scheduled Tour/Activity: Customers who cancel their booking 72 hours or more before the scheduled start time of the tour or activity shall be eligible for a 100% refund of the booking amount, subject to any applicable payment gateway charges or other deductions expressly permitted under the applicable policies. (b) Cancellation Between 48 and 72 Hours Before the Scheduled Tour/Activity: Customers who cancel their booking less than 72 hours but at least 48 hours before the scheduled start time of the tour or activity shall be eligible for a 50% refund of the booking amount, subject to any applicable payment gateway charges or other permitted deductions. (c) Cancellation Less Than 48 Hours Before the Scheduled Tour/Activity: Bookings cancelled less than 48 hours before the scheduled start time of the tour or activity shall be non-refundable, except where a

		refund is required under applicable law or otherwise expressly approved by Better Pass. (d) No-Show: If a Customer fails to attend or use the booked tour, activity, or service without cancelling within the applicable cancellation period, the booking shall generally be non-refundable. (e) Vendor Cancellation or Service Unavailability: Where a Vendor/Partner cancels a confirmed booking, is unable to provide the booked service, or where the service is cancelled by Better Pass due to circumstances attributable to the Vendor/Partner, the Customer may be eligible for a full refund, subject to the circumstances of the cancellation and the applicable policies. (f) Processing of Refunds: Approved refunds shall be processed through the applicable payment method or payment gateway used for the transaction. The time taken for the refund to be credited to the Customer's account may depend on the payment gateway, bank, card issuer, or other payment service provider. Razorpay's applicable policies shall apply to the processing of payments and refunds through Razorpay.
8	4.6 Devices	Can be accessed via a web browser or on Google Play store and apple app store, on supported devices.
10	5.2	Add the word “ correct ” before “ current ”, so that the relevant phrase reads “ correct current... ”
11	Privacy Policy – Contractual Agreement	Add a provision making it clear that the Privacy Policy forms part of the contractual terms governing use of Better Pass , and that acceptance/use of the platform constitutes acknowledgement of the Privacy Policy.
12	7.2	This point needs to be reviewed against the actual existing wording of Clause 7.2 before filling it. No specific change is indicated in the photograph.
13	7.4(f)	Add the terms “ clone ” and “ piracy ” to the prohibited activities. The clause should prohibit users from cloning, copying, reproducing, pirating, reverse engineering or creating unauthorised derivative versions of Better Pass, its platform, content, systems or services.
14	7.4.10	Add location and customer to the relevant prohibited-use/data provision. It should cover unauthorised collection, misuse, disclosure or exploitation of customer information and location information .
15	8	Payments are provided for: 1. Booking a tour/activity 2. External Advertisements 3. Boosting Posts
16	10.6	Remove this clause , as indicated in the document.

17	11.1	11.1 Users are responsible for providing true, accurate, complete, and current information when creating an account, purchasing a Better Pass, making a booking, or using any Better Pass Service. 11.2 Users must use the Better Pass platform and Services only for lawful purposes and in accordance with these Terms and Conditions and all applicable laws and regulations. 11.3 Users are responsible for reviewing all relevant information before making a booking, including the date, time, location, duration, requirements, restrictions, inclusions, exclusions, and cancellation/refund policy applicable to the selected tour, activity, or service. 11.4 Users must follow all reasonable instructions, safety requirements, rules, and guidelines provided by Better Pass, the relevant Vendor/Partner, Tour Company, Activity Instructor, or Local Guide. 11.5 Users are responsible for ensuring that they meet all applicable age, identification, physical, skill, licence, or other eligibility requirements for any tour, activity, or service they book. 11.6 Users must behave respectfully and appropriately towards Better Pass, Vendors/Partners, Tour Companies, Activity Instructors, Local Guides, other Customers, and members of the public. Users must not engage in abusive, threatening, discriminatory, fraudulent, disruptive, or unlawful behaviour. 11.7 Users must not misuse the Better Pass platform or Services, including attempting to gain unauthorised access, interfering with the platform, introducing malicious code, creating fraudulent accounts or bookings, or using the Services for any unlawful or unauthorised purpose. 11.8 Users are responsible for arriving at the designated meeting point or location on time. Failure to arrive within the required time may result in the booking being treated as a no-show and may affect the User's eligibility for a refund. 11.9 Users are responsible for their personal belongings and valuables while participating in any tour, activity, or service, unless otherwise expressly stated by Better Pass or the relevant Vendor/Partner. 11.10 Users must not provide false, misleading, fraudulent, or defamatory information, reviews, ratings, or feedback concerning Better Pass or any Vendor/Partner. 11.11 Users must not transfer, resell, misuse, or commercially exploit their Better Pass, booking, ticket, voucher, QR code, or other access credentials except where expressly permitted by Better Pass. 11.12 Any User who violates these Terms or misuses the Better Pass Services may have their access to the platform, Better Pass, or bookings restricted, suspended, or terminated, without prejudice to any other
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		rights or remedies available to Better Pass under these Terms or applicable law. .
18	15.3	The name and the logo are trademarked
19	17.3	After deletion of an account the data is deleted from the database.
20	Customer Support – New Clause	Mobile: 6293764221 Email: support@thebetterpass.com Address: 3A, Humayun Place, Light House Building, Dharmatala, Taltala, Kolkata - 700087